



File No.: EXP202103457

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by QUALITY-PROVIDER S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated April 4, 2023, and based on the following

FACTS

FIRST: On April 4, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202103457, by virtue of which QUALITY-PROVIDER S.A. was imposed a fine of 10,000 euros for each infringement due to a violation of Article 6 of the GDPR and Article 17 of the GDPR, classified under Article 83.5 of the GDPR, totaling 20,000 euros (twenty thousand euros). This resolution, which was notified to the appellant on May 3, 2023, was issued following the processing of the corresponding sanctioning procedure, in accordance with the provisions of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (LOPDGDD), and supplementarily under Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), regarding the processing of sanctioning procedures.

SECOND: As proven facts of the aforementioned sanctioning procedure, PS/00524/2022, the following was recorded:

PROVEN FACTS

FIRST: The complainant states that they received a phone call, and that the caller informed them that their data with QUALITY had been canceled.

It has been confirmed that the entity being complained about has not canceled the personal data of the complainant despite their request.

THIRD: The appellant submitted on May 16, 2023, to this Spanish Agency for Data Protection, a recourse for reconsideration, fundamentally arguing that there is a manifest incompetence of the Spanish Agency for Data Protection to process the present procedure by virtue of what is stipulated by Directive (EU) 2019/1937 of the European Parliament and of the Council, of October 23, 2019, on the protection of persons who report breaches of Union law, which came into force on December 17, 2019. The appellant also indicates that the resolution of the sanctioning procedure subject to the recourse was issued out of time.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

LEGAL GROUNDS

I

As a preliminary matter, it should be noted that the new document submitted by the appellant has not been classified as a recourse for reconsideration. However, subsection 2 of Article 115 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), establishes that the error or absence of classification of the recourse by the appellant shall not be an obstacle to its processing, provided that its true nature is deduced; therefore, the submitted document will be processed as a recourse for reconsideration.

The Director of the Spanish Agency for Data Protection is competent to resolve the present recourse, in accordance with the provisions of Article 123 of the LPACAP and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD).

II

Regarding the first of the statements made by the appellant, it should be noted that they were already

analyzed and dismissed in the Legal Grounds, VII and VIII of the contested Resolution, as transcribed below:

<< VII

The entity being complained about considers the manifest incompetence of the AEPD to know about the present sanctioning procedure, based on Directive (EU) 2019/137 of the European Parliament and of the Council, of October 23, 2019, on the protection of persons who report breaches of Union law, which came into force on December 17, 2019.

The entity being complained about believes that the entry into force of Directive (EU) 2019/137 implied a significant legislative change, as it directly modified, among others, the General Data Protection Regulation. The most significant implications of this Directive are that, firstly, it creates a different conflict resolution and administrative simplification system; and secondly, its entry into force renders the LOPDGDD obsolete, which should have been adapted from the moment the Directive (EU) 2019/137 came into force.

In this regard, we must point out that Article 288 of the Treaty on the Functioning of the EU states the following:

“To exercise the competences of the Union, the institutions shall adopt regulations, directives, decisions, recommendations, and opinions.”

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

The regulation will have a general scope. It will be mandatory in all its elements and directly applicable in each Member State.

The directive will bind the recipient Member State regarding the result to be achieved, leaving, however, to the national authorities the choice of form and means.

The decision will be mandatory in all its elements. When it designates recipients, it will only be mandatory for them.

Recommendations and opinions will not be binding.

Therefore, it follows from this provision that directives, unlike regulations which are directly applicable, are binding legal acts that imply an obligation of result for the recipient Member States, that is, they imply an obligation of transposition by the EU Member States recipients of this Directive.

The Directive in question has been transposed into the Spanish legal system through Law 2/2023, of February 20, regulating the protection of persons who report regulatory infringements and combating corruption, which, although it has modified Article 24 of the LOPDGDD, has not resulted in the AEPD ceasing to be the independent control authority responsible for overseeing the application of the GDPR.

VIII

In the present case, the complainant alleges against the complained entity because despite their request, it does not delete their personal data, claiming that such action is not possible as it does not know which data is being referred to.

The Guidelines 01/2022 on the rights of data subjects — Right of access - Version 1.0 adopted on January 18, 2022, state, regarding the identification of the requesting person, that the data controller must respond to the requests of data subjects exercising their individual rights, unless it can demonstrate, through justification in accordance with the principle of proactive responsibility (Article 5, paragraph 2), that it is unable to identify the data subject (Article 11).

And in particular regarding the assessment of proportionality in relation to the identification of the requester, the aforementioned Guidelines provide the following:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

“69 As previously indicated, if the data controller has reasonable grounds to doubt the identity of the requesting person, it may request additional information to confirm the identity of the data subject. However, the data controller must ensure at the same time that it does not collect more personal data than necessary to allow the identification of the requesting person. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from an improper disclosure. In assessing proportionality, it should be remembered to avoid excessive data collection, while ensuring an adequate level of security in processing.

70. The data controller must apply an authentication procedure (verification of the identity of the data subject) to ensure the identity of the individuals requesting access to their data²⁸, and guarantee the security of processing throughout the entire process of handling a request for access in accordance with Article 32, including, for example, a secure channel for data subjects to provide additional information. The method used for authentication must be relevant, appropriate, proportionate, and respect the principle of data minimization. If the data controller imposes burdensome measures aimed at identifying the data subject, it must adequately justify this and ensure compliance with all fundamental principles, including data minimization and the obligation to facilitate the exercise of the rights of data subjects (Article 12, paragraph 2, of the GDPR).

73 It is important to emphasize that the use of a copy of an identity document as part of the authentication process creates a risk to the security of personal data and may lead to unauthorized or unlawful processing, so it should be considered inadequate unless it is strictly necessary, appropriate, and compliant with national law. In such cases, data controllers must have systems in place that ensure an adequate level of security to mitigate the greater risks to the rights and freedoms of the data subject when receiving such data. It is also important to note that identification using an identity document does not necessarily help in the online context (for example, with the use of pseudonyms) if the data subject cannot provide any other proof, for example, other characteristics that match the user account.”

Therefore, it should be indicated that the complained entity should have requested the representative of the complainant to prove their representation and not the ID of the represented person, the father of the representative. The complained entity has not demonstrated the proportionality of its request.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
5/7

which can be considered excessive and constitutes an obstruction of the exercise of the right to erasure.

This is so because no greater formalities can be required for the exercise of rights than those followed to obtain such data.

Therefore, Article 17 of the GDPR would have been violated in accordance with the legal basis V. >> Secondly, as an extraordinary allegation, it is also stated that the resolution of the sanctioning procedure was issued outside the established time frame.

In this regard, it should be noted that Article 21.2 of Law 39/2015 of October 1 on the Common Administrative Procedure of Public Administrations (hereinafter LPAC) establishes the following:

“The maximum period in which the express resolution must be notified will be that set by the regulatory norm of the corresponding procedure. This period may not exceed six months unless a law establishes a longer one or it is provided for in European Union law.”

In this respect, it should be indicated that on page 10 of the initiation agreement of the sanctioning procedure against which the present appeal for reconsideration is filed, the following was indicated:

“The procedure will have a maximum duration of nine months from the date of the initiation agreement or, where appropriate, from the draft initiation agreement. After this period, it will expire and, consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the

LOPDGDD.”

Therefore, in accordance with Article 21.2 of the LPAC, the provisions of the LOPDGDD will apply, specifically in its Article 64, which establishes that the duration of the procedure will be nine months. Thus, if the initiation agreement of PS/00524/2022 was notified on November 3, 2022, and its resolution was notified on April 3, 2023, under Article 64 of the LOPDGDD, and in accordance with Article 21.2 of the LPAC, it was carried out within the time frame and therefore in accordance with the law.

III

Consequently, in the present appeal for reconsideration, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

FIRST: TO DISMISS the appeal for reconsideration filed by QUALITY-PROVIDER S.A. against the resolution of this Spanish Agency for Data Protection issued on April 4, 2023, in file EXP202103457.

SECOND: TO NOTIFY this resolution to QUALITY-PROVIDER S.A.

THIRD: To warn the sanctioned party that the imposed sanction must be enforced once this resolution becomes executive, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into restricted account no. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., or otherwise, collection will proceed in the executive period. Upon receipt of the notification and once it is executive, if the date of executivity falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

180-111122
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/7

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es